



OSMANIA UNIVERSITY

LL.B. (3-YDC)

Semester III

Complete Exam Notes

For **LL.B. (General)** and **LL.B. (Honours)** students

Full syllabus · Simple English · Latest cases · Questions with answers

PAPERS IN THIS BOOK

Paper I	Jurisprudence
Paper II	Law of Property
Paper III	Administrative Law
Paper IV	Company Law
Paper V	Labour Law-I (Trade Unions and Industrial Relations Code)
Paper VI	Public International Law

INSIDE EVERY PAPER

- ◆ **Whole syllabus**, unit by unit, topic by topic
- ◆ Written in **simple, plain English** with tables
- ◆ **Sections and leading cases** for every topic
- ◆ **Latest cases** and recent amendments as examples
- ◆ **Points to remember** after every unit
- ◆ **Quick revision tables** for the last day
- ◆ **Short answers, essay guides and solved problems** in the exam pattern

About This Book

This book contains complete exam notes for **Semester III** of the **LL.B. (3-YDC)** course of **Osmania University**. All the papers of the semester are bound together in one book, with one set of page numbers.

Who Can Use This Book

Course	How to use it
LL.B. (Honours)	Follows the LL.B. (Hons) scheme of the semester – every paper, in the same order as the syllabus.
LL.B. (General)	The subjects that are common to the General course are covered by the same notes. Please match the units with your own syllabus copy; extra Honours topics can be skipped.

What Every Paper Contains

1. **Unit-wise notes** – every topic in the syllabus, in the same order as the syllabus.
2. **Simple, plain English** – short sentences, tables and easy rules.
3. **Sections and leading cases** – with the **latest cases and amendments** as examples.
4. **Points to remember** at the end of each unit.
5. **Quick revision tables** – sections, comparisons and recent cases for the last day.
6. **Questions and answers** – short answers, essay answer guides and solved problems in the exam pattern.

How to Use This Book for the Exam

1. Read each unit once fully. Mark the sections and the case names.
2. Learn the **Points to Remember** – they are ready-made short answers.
3. Practise the **essay answer guides** by writing each answer in your own words.
4. Solve the **problem questions** in the order: Facts – Issue – Law – Application – Conclusion.
5. On the day before the exam, read only the **Quick Revision** tables.

Please Note

This book is an **independent study aid**. It is not an official publication of Osmania University. The questions are **model questions** framed on the syllabus and the usual exam pattern. The law changes often – please check **recent amendments and recent cases** with the bare Act or an official source before quoting them. The book is for study purposes only and is not legal advice.

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PAPER I

Jurisprudence

OSMANIA UNIVERSITY

LL.B. (3-YDC)

SEMESTER III

IN THIS PAPER

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- ◆ Unit-II: Sources of Law – Legislation, Precedent, Custom and Codification
- ◆ Unit-III: Persons, Rights and Duties
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Unit-I: Jurisprudence, Schools, Theories of Law and Sovereignty

Meaning and Definition of Jurisprudence

1. Meaning

The word **jurisprudence** comes from the Latin "**jurisprudentia**" – *juris* means **law** and *prudentia* means **knowledge** or **skill**. So jurisprudence means "**knowledge of law**" or "**the science of law**".

In simple words, jurisprudence is the **study of the basic ideas behind law** – what law is, why we obey it, where it comes from, what rights, duties, persons, ownership and possession mean, and what the purpose of law is. It is often called the "**eye of law**" or the "**grammar of law**", because it helps us understand all other branches of law.

Easy rule: Other law subjects tell you **what the law says**; jurisprudence tells you **what law is and why it is so**.

2. Definitions

Jurist	Definition
Ulpian (Roman jurist)	"Jurisprudence is the knowledge of things divine and human , the science of the just and the unjust ."
Cicero	Jurisprudence is the philosophical aspect of the knowledge of law .
John Austin	Jurisprudence is " the philosophy of positive law " – law as it is, not as it ought to be.
Holland	Jurisprudence is " the formal science of positive law " – it studies the relations regulated by law, not the material rules.
Salmond	Jurisprudence is " the science of the first principles of the civil law " (law of the State).
Keeton	Jurisprudence is " the study and systematic arrangement of the general principles of law ."
Roscoe Pound	Jurisprudence is " the science of law , using the term law in the juridical sense, as denoting the body of principles recognised or enforced by public and regular tribunals in the administration of justice."
Julius Stone	Jurisprudence is " the lawyer's extraversion " – the lawyer's examination of the precepts, ideals and techniques of law in the light of knowledge from other disciplines .
Dias	Jurisprudence is concerned with thought about law , in all its aspects.

3. Nature and Scope of Jurisprudence

1. **It is a science** – it studies law **systematically**, finds general principles and classifies them.
2. **It has no limited scope** – it covers all thought about law; it overlaps with **philosophy, sociology, history, political science, economics and psychology**.

3. It is the "**lawyer's extraversion**" – it looks at law from outside.
4. It **studies concepts** common to all legal systems – rights, duties, persons, property, ownership, possession, liability.
5. It is **both theoretical and practical** – it helps judges interpret laws, legislators make laws and lawyers argue cases.

4. Importance (Utility) of Jurisprudence

1. **Clarifies basic concepts** – helps understand terms like "right", "person", "ownership", "possession".
2. **Helps judges in interpreting** statutes and filling **gaps** in law (e.g., deciding whether a river or an animal is a legal person).
3. **Helps legislators** draft better laws by understanding the **purpose** of law.
4. **Trains lawyers** to think logically and critically.
5. **Links law with society** – shows how law responds to social change (e.g., **privacy** in *Puttaswamy*, **LGBTQ** rights in *Navtej Johar*).
6. **Has educational value** – Salmond said it has "**intellectual interest**", like any other science.
7. **Helps in law reform** – e.g., replacing the IPC with the **BNS (2023)** involved questions about the purpose of punishment.

Latest example: In *K.S. Puttaswamy v UOI (2017)*, the nine-judge bench discussed **natural law**, **dignity** and **liberty** to hold that **privacy** is a fundamental right. This shows how jurisprudence directly shapes constitutional decisions.

General and Particular Jurisprudence

Holland and **Austin** distinguished between general and particular jurisprudence.

General jurisprudence	Particular jurisprudence
Studies principles common to all developed legal systems	Studies the principles of one particular legal system (e.g., Indian law)
Also called universal or comparative jurisprudence	Also called national or municipal jurisprudence
Example: the concept of "ownership" in all systems	Example: ownership under the Indian Transfer of Property Act
Austin: "the science of principles, notions and distinctions common to all systems of law "	Austin: "the science of any actual system of law"

Criticism: **Salmond** said this distinction is not useful. No principle is truly common to all legal systems; jurisprudence studies principles of **mature** legal systems in general.

Elements of Ancient Indian Jurisprudence

1. Concept of Dharma

In ancient India, law was part of **dharma**. Dharma is a wide term meaning **duty, righteousness, morality, religion and law**. It comes from the root *dhr* – "**to uphold**" or "**to sustain**". Dharma is what **sustains society**.

Key idea: Even the **king** was **bound by dharma**; he was not above it. The king's duty (**Rajadharma**) was to **protect** the people and **enforce dharma**. This is similar to the modern idea of the **rule of law**.

Brihadaranyaka Upanishad: "Law (dharma) is the **king of kings**... nothing is higher than law. By its power, the weak can prevail over the strong."

2. Sources of Dharma (Law)

Manu listed four sources:

1. **Shruti** (that which is heard) – the **Vedas**, the primary source;
2. **Smriti** (that which is remembered) – the **Dharmashastras** (Manusmriti, Yajnavalkya Smriti, Narada Smriti, Parashara Smriti);
3. **Sadachara** (good conduct) – the **customs** and practices of virtuous people;
4. **Atmatushti** (self-satisfaction) – **conscience**, what is pleasing to oneself.

Later, **commentaries** (*Mitakshara* by Vijñaneshwara and *Dayabhaga* by Jimutavahana) and **digests** became important.

3. Main Features of Ancient Indian Jurisprudence

1. **Law based on duties** rather than rights.
2. **King bound by law** – Rajadharma; a king who did not protect his people could be **removed** (as stated by Manu and in the Mahabharata).
3. **Danda (punishment)** – **Manu**: "Danda (punishment) **governs** all people, protects them and is awake while they sleep." Punishment had to be **proportionate**, and considered the **offender's capacity**, time and place.
4. **Vyavahara (legal procedure)** – **Manu** listed **18 titles of law** (*vyavaharapadas*) – debts, deposits, sale without ownership, partnership, gifts, wages, breach of contract, boundary disputes, defamation, assault, theft, robbery, adultery, duties of husband and wife, partition, gambling and others.
5. **System of courts** – the king's court, and **popular courts**: **Kula** (family), **Shreni** (guild of traders) and **Gana / Puga** (village assembly). Appeals lay from lower to higher courts.
6. **Kautilya's Arthashastra** – a treatise on statecraft, administration, economics and law. It said that among four sources – **dharma, vyavahara (evidence), charitra (custom) and rajashasana (royal edicts)** – each later one prevails over the earlier one, so **royal law** prevailed in case of conflict.
7. **Concept of justice** – **Nyaya** (justice through reasoning) and **Niti** (rules and institutions). Amartya Sen used these ideas in his book *The Idea of Justice* (2009).

4. Relevance Today

- The **Supreme Court's emblem** carries the motto "**Yato Dharmastato Jayah**" – "where there is dharma, there is victory".
- The idea of a ruler bound by law is reflected in the **rule of law** and the **basic structure** doctrine.
- Indian courts have referred to ancient texts, e.g., on the **duty of the State to protect** and on **mediation** (village panchayats).

Schools of Jurisprudence

The main schools are:

School	Question it asks	Main jurists
Analytical (Positivist)	What is law as it is ?	Bentham, Austin, Hart, Kelsen
Historical	How did law grow over time?	Savigny, Puchta, Henry Maine
Philosophical (Natural Law)	What ought law to be? What is its ideal and purpose ?	Aristotle, Aquinas, Grotius, Kant, Hegel, Fuller, Finnis
Sociological	How does law work in society and serve social needs ?	Ihering, Ehrlich, Duguit, Roscoe Pound
Realist (an offshoot of sociological)	How do judges actually decide cases?	Holmes, Llewellyn, Frank

Analytical School (Positivism)

1. Meaning

The **analytical** (or **positivist** or **imperative**) school studies **law as it is** ("positive law" – law laid down by the State), not law as it **ought to be**. It **separates law from morality**. It analyses the **concepts** of law – rights, duties, persons and so on.

2. Jeremy Bentham (1748–1832)

1. Founder of **utilitarianism** – the aim of law is "**the greatest happiness of the greatest number**".
2. Law is the **command** of the sovereign.
3. Distinguished between **expositorial** jurisprudence (law as it is) and **censorial** jurisprudence (law as it ought to be).
4. Strongly supported **codification** of law (he coined the word "**codification**").
5. Called natural rights "**nonsense upon stilts**".

3. John Austin (1790–1859) – "Father of English Jurisprudence"

Book: *The Province of Jurisprudence Determined* (1832).

Definition: "Law is a **command** of the **sovereign**, backed by **sanction**."

Elements of Austin's theory:

1. **Command** – an expression of wish by a superior to an inferior to do or not to do something;
2. **Sovereign** – a determinate human superior who receives **habitual obedience** from the bulk of society and is **not in habitual obedience** to any other superior;
3. **Sanction** – the **evil** (punishment) which follows disobedience;
4. **Duty** – the obligation to obey the command.

Classification of law by Austin:

- **Laws properly so called** – (a) **divine laws** (laws of God) and (b) **human laws** – (i) **positive law** (set by political superiors) and (ii) **positive morality** (e.g., rules of a club, international law, fashion);
- **Laws improperly so called** – laws by **analogy** (e.g., rules of etiquette) and laws by **metaphor** (laws of nature, like the law of gravity).

Only **positive law** is the proper subject of jurisprudence.

Criticism of Austin:

1. **Customary law** is not a command, but it is law.
2. **International law** is not "law" in Austin's theory (no sovereign), but States do treat it as binding.
3. **Constitutional law** and **sovereignty** – in federal States like India and the USA, there is no single "illimitable" sovereign; the **Constitution** is supreme (*Kesavananda Bharati*, 1973).
4. **Permissive laws** (e.g., the right to make a will) are not commands.
5. **Judge-made law** is ignored.
6. Law is not only about **sanction**; people obey law also because it is **just** or **habitual**.
7. **Separation of law and morality** is too rigid.

4. H.L.A. Hart (1907–1992) – *The Concept of Law* (1961)

Hart criticised Austin's "**gunman situation**" model – a command backed by threat is like a robber's order ("your money or your life"), not law.

Hart's theory: Law is a **union of primary and secondary rules**.

1. **Primary rules** – rules of **obligation** that impose duties (e.g., do not steal, pay taxes).
2. **Secondary rules** – rules **about** primary rules:
 - **Rule of recognition** – tells how to identify valid law (e.g., what Parliament enacts is law; the **Constitution** in India);
 - **Rules of change** – how laws can be made or changed (legislative procedure);
 - **Rules of adjudication** – who decides disputes and how (courts).

Other points:

- **Internal aspect** of rules – officials and citizens **accept** rules as standards of behaviour, not just from fear.

- **Minimum content of natural law** – any legal system must protect basic things like life, property and promises, because of human vulnerability, approximate equality, limited altruism, limited resources and limited understanding.
- **Open texture** of law – words have a "core" of settled meaning and a "**penumbra**" of doubt where judges have **discretion**.

Hart-Fuller debate (1958): Hart argued that law and morality are **separate**; **Lon Fuller** argued that law has an **inner morality**. The debate arose over Nazi laws (the "**grudge informer**" case – a wife who reported her husband to the Nazis for criticising Hitler).

Hart-Dworkin debate: Ronald Dworkin (*Taking Rights Seriously*, 1977) argued that law consists not only of **rules** but also of **principles** (e.g., "no one should profit from his own wrong" – *Riggs v Palmer*, 1889, where a grandson who murdered his grandfather could not inherit under the will). Judges do not have unlimited discretion; there is a "**right answer**" in hard cases (the "**Hercules**" judge).

5. Hans Kelsen (1881–1973) – Pure Theory of Law

1. Law must be studied **purely** – free from **ethics, politics, sociology and history**.
2. Law is a **system of norms** ("ought" statements), not facts ("is" statements).
3. **Hierarchy of norms** – every norm gets its validity from a **higher norm**: a court order from a statute, a statute from the Constitution, and the Constitution from the **Grundnorm** (basic norm).
4. **Grundnorm** – the **basic norm**, which is **presupposed** (assumed), not created. It is the ultimate source of validity. In India, the Grundnorm can be seen as the presupposition that the **Constitution** must be obeyed.
5. The Grundnorm changes with a successful **revolution**. In *State v Dosso (Pakistan Supreme Court, 1958)*, the court relied on Kelsen to validate a **military coup** – it said a successful revolution creates a new Grundnorm. This was later rejected in *Asma Jilani v Government of Punjab (1972)*.
6. **No difference** between State and law, or between public and private law.
7. **International law** is above national law (monism).

Criticism: The Grundnorm is vague; law cannot be fully separated from society and values; the theory may justify unjust regimes (as in *Dosso*).

6. Merits and Demerits of the Analytical School

Merits	Demerits
Gives clarity and precision to legal concepts	Ignores morality, justice and social purpose
Treats law as a science	Ignores custom and history
Supports codification and certainty	Treats law as merely commands
Helps in interpretation	Cannot explain international and constitutional law well

Historical School

1. Meaning

The **historical school** says law is **not made** but **found**; it **grows** with the life of a people, like **language**. Law is a product of **history, custom and the spirit of the people**.

2. Friedrich Carl von Savigny (1779–1861) – Father of the Historical School

Background: After Napoleon's conquests, there was a demand (led by **Thibaut**) to **codify** German law on the model of the **French Code Napoleon (1804)**. Savigny **opposed** this in his essay *On the Vocation of Our Age for Legislation and Jurisprudence* (1814).

Main ideas:

1. **Volksgeist** – law is the expression of the "**spirit of the people**" (common consciousness). It grows from **customs and beliefs**, not from the will of a law-maker.
2. **Law grows like language** – "Law grows with the growth, and strengthens with the strength of the people, and finally dies away as the nation loses its nationality."
3. **Custom** is superior to **legislation**; legislation should only **record** custom.
4. **Codification** should be postponed until the law has developed fully; a hasty code would freeze the law.
5. Law is **national**, not universal.

Criticism:

1. **Volksgeist is vague** – there is no single "spirit" of a people; there are conflicts between classes, regions and groups.
2. Many laws are **borrowed** from other countries (e.g., Roman law was adopted in Germany; India borrowed the IPC from English ideas).
3. Law often **leads** social change rather than following it – e.g., the **abolition of sati (1829)**, the **Hindu Widows' Remarriage Act (1856)**, **untouchability** (Art. 17), the **Muslim Women (Protection of Rights on Marriage) Act, 2019**.
4. Legislation is now the **main** source of law.
5. Ironically, Germany adopted a **Civil Code (BGB) in 1900**.

3. Sir Henry Maine (1822–1888) – Ancient Law (1861)

1. Used the **comparative and historical** method; studied ancient Roman, Hindu and English law (he served in India).
2. **Stages of development of law:**
 - (i) law by **personal commands** of rulers believed to be divinely inspired (**themistes**);
 - (ii) **customary law** – commands crystallise into customs;
 - (iii) **knowledge of custom** with a priestly or **aristocratic** minority;
 - (iv) **codes** (e.g., the Twelve Tables in Rome, the Code of Manu).

3. **Static and progressive societies** – in static societies, law stops at codification; in **progressive** societies, law develops further through:

- legal fictions;
- equity;
- legislation.

4. **"From Status to Contract"** – "The movement of the progressive societies has hitherto been a movement **from status to contract**." In ancient societies, a person's rights depended on his **status** (family, caste, sex); in modern societies, they depend on **free agreement** (contract).

Relevance today: Some argue the movement is now **"from contract back to status"** – modern welfare laws (labour codes, consumer protection, tenancy and rent laws) give rights based on **status** (worker, consumer, tenant), limiting freedom of contract.

4. Merits and Demerits of the Historical School

Merits	Demerits
Showed that law is linked to society and history	Neglected legislation and reform
Showed the importance of custom	Volksgeist is vague
Opposed blind borrowing of foreign law	Too conservative – opposed codification
Gave rise to the sociological school	Ignored the role of judges and lawyers

Philosophical School (Natural Law School)

1. Meaning

The **philosophical** or **natural law** school says that there is a **higher law** based on **reason, nature or God**, which is **universal** and **unchangeable**. Positive law must **conform** to it; an unjust law is **"not law at all"**. It studies **what law ought to be** and the **ideals** of law – justice, morality and liberty.

2. Development of Natural Law

Period	Thinkers	Ideas
Ancient Greek	Socrates, Plato, Aristotle; the Stoics	Natural justice; Aristotle distinguished natural justice (same everywhere) from conventional justice
Roman	Cicero	"True law is right reason in agreement with nature; it is of universal application, unchanging and everlasting." Jus naturale (natural law), jus gentium (law of nations)
Medieval	St. Thomas Aquinas	Four kinds of law – eternal law (God's reason), natural law (human reason's participation in eternal law), divine law (scripture), human law (must agree with natural law). "An unjust law is no law at all" (<i>lex iniusta non est lex</i>)

Period	Thinkers	Ideas
Renaissance / Social Contract	Grotius (father of international law), Hobbes, Locke, Rousseau	Natural law based on reason , not God; social contract ; natural rights (life, liberty, property – Locke); popular sovereignty (Rousseau – "general will")
19th century decline	–	Positivism and historical school rejected natural law as vague
20th century revival	Stammler ("natural law with a variable content"), Radbruch, Lon Fuller, John Finnis, John Rawls	After the Nazi atrocities , natural law revived through human rights (UDHR, 1948)

3. Social Contract Theories

Thinker	State of nature	Social contract	Result
Thomas Hobbes (<i>Leviathan</i> , 1651)	Life was " solitary, poor, nasty, brutish and short "; war of all against all	People surrendered all rights to a sovereign for security	Absolute sovereignty
John Locke (<i>Two Treatises of Government</i> , 1690)	Peaceful, but no impartial judge; people had natural rights to life, liberty and property	People surrendered only the right to punish , keeping natural rights	Limited government; right to resist a tyrant; basis of constitutionalism
J.J. Rousseau (<i>The Social Contract</i> , 1762)	"Man is born free, but everywhere he is in chains"	People surrendered their rights to the community as a whole – the " general will "	Popular sovereignty ; basis of democracy

4. Modern Natural Law Thinkers

1. **Lon Fuller** (*The Morality of Law*, 1964) – law has an "**inner morality**". A legal system fails if it does not satisfy **eight principles**:

- laws must be **general**;
- **published**;
- **prospective** (not retrospective);
- **clear**;
- **not contradictory**;
- **possible** to obey;
- **relatively constant**;
- **officials must act according to the declared rules**.

2. **John Finnis** (*Natural Law and Natural Rights*, 1980) – seven **basic goods**: life, knowledge, play, aesthetic experience, sociability (friendship), practical reasonableness and religion.

3. **Gustav Radbruch** – the "**Radbruch formula**": when a statute is **intolerably unjust**, it must yield to justice. Used by German courts after the Second World War and after German reunification (the

"Berlin Wall shooters" cases).

4. **John Rawls** (*A Theory of Justice*, 1971) – see "Concept of Justice" in Unit V.

5. Natural Law in India

Natural law ideas are seen in:

1. **Fundamental rights** and the **Preamble**;
2. **Principles of natural justice** (*audi alteram partem*, *nemo judex in causa sua*) – *Maneka Gandhi v UOI* (1978): procedure under Art. 21 must be **just, fair and reasonable**;
3. **Basic structure doctrine** – *Kesavananda Bharati* (1973): Parliament cannot destroy the essential features of the Constitution;
4. *ADM Jabalpur v Shivkant Shukla* (1976) – Justice **H.R. Khanna's** famous **dissent**: the right to life and liberty is **not a creation of the Constitution**; it exists **independently** (natural law). The majority view was **overruled** in *K.S. Puttaswamy* (2017), which held that life and liberty are **inalienable** natural rights;
5. *Navtej Singh Johar* (2018) – **dignity** and **autonomy** as inherent rights.

6. Merits and Demerits

Merits	Demerits
Gives law a moral foundation	Vague – different thinkers give different contents
Basis of human rights and constitutionalism	Can be used to support opposite views (absolutism by Hobbes; democracy by Rousseau)
Tests the justice of laws	Ignores positive law realities
Helped resist tyranny (Nazi laws)	Subjective – who decides what is "natural"?

Sociological School

1. Meaning

The **sociological school** studies the **relationship between law and society**. It looks at the **actual working** of law and its **effect** on society. Law is a **means** to achieve **social ends**. It emphasises the **functional** aspect of law.

2. Main Thinkers

Jurist	Main idea
Auguste Comte (1798–1857)	Founder of sociology ; studied society scientifically
Rudolf von Ihering (1818–1892) – " father of modern sociological jurisprudence "	Law is a means to a social end ; law reconciles individual interests with social interests ; law is " the form of the guarantee of the conditions of life of society , assured by the State's power of constraint". He used the image of a lever – "reward" and "coercion" are the two levers of social motion

Jurist	Main idea
Eugen Ehrlich (1862–1922)	" Living law " – "The centre of gravity of legal development lies not in legislation, nor in juristic science, nor in judicial decision, but in society itself. " The real law is the law that actually governs people's lives (customs, practices of associations), not just the law in books
Leon Duguit (1859–1928)	Social solidarity – humans depend on each other; law is what promotes social solidarity . He rejected the ideas of sovereignty and individual rights ; there are only social functions and duties
Max Weber	Types of authority (traditional, charismatic, legal-rational)
Roscoe Pound (1870–1964)	Social engineering (see below)

3. Roscoe Pound – Theory of Social Engineering

Roscoe Pound, Dean of the Harvard Law School, said that law is a tool of **social engineering**. Just as an engineer builds structures by using resources efficiently, law should **satisfy the maximum of human wants with the minimum of friction and waste**, by **balancing** competing interests.

Classification of interests:

Category	Examples
Individual interests	(a) Personality – physical integrity, freedom of will, honour, privacy, belief and opinion; (b) Domestic relations – parents and children, husband and wife; (c) Interest of substance – property, freedom of contract and association, freedom of trade, employment
Public interests	Interests of the State as a juristic person (its personality and its property); interests of the State as guardian of social interests
Social interests	General security (peace, health); security of social institutions (family, religion, political institutions); general morals ; conservation of social resources (environment); general progress (economic, political, cultural); individual life (each person should live a human life according to the standards of society)

Jural postulates – the basic assumptions of a civilised society, e.g.:

1. people will **not commit intentional aggression** on others;
2. people can **control** what they have **created** or acquired by their labour;
3. people will act in **good faith** and **keep promises**;
4. people will act with **due care**;
5. people who keep **dangerous things** will restrain them (strict liability).

Criticism: "Engineering" treats society like a machine; interests are difficult to measure and compare; the classification overlaps.

4. Sociological Jurisprudence in India

The Indian judiciary has used law as a tool of **social engineering**:

1. **Public Interest Litigation (PIL)** – relaxed **locus standi** for the poor (*S.P. Gupta, 1981; Bandhua Mukti Morcha, 1984*);
2. **Expansion of Art. 21** – livelihood, health, environment, shelter, privacy;
3. **Vishaka (1997)** – guidelines on sexual harassment at the workplace;
4. **Reservations and affirmative action** – balancing equality and social justice (*Indra Sawhney, 1992*);
5. **Environmental jurisprudence** – *M.C. Mehta* cases, absolute liability (1987), the **polluter pays** principle;
6. **Social welfare legislation** – land reforms, labour codes, the **Right to Education Act, 2009**, MGNREGA, the **Transgender Persons Act, 2019**.

Latest example: In *Supriyo Chakraborty v UOI (2023)*, the Supreme Court refused to recognise **same-sex marriage** through judicial interpretation, leaving it to **Parliament**. This shows the debate between **judicial social engineering** and the role of the **legislature**.

Realist School (Brief Note)

The **American realists** focused on what **judges actually do**.

1. **Oliver Wendell Holmes:** "The life of the law has not been logic; it has been experience." "The prophecies of what the courts will do in fact, and nothing more pretentious, are what I mean by the law."
2. **Karl Llewellyn** – law is what officials **do** about disputes.
3. **Jerome Frank** – judicial decisions are affected by the judge's **personality**, even "what the judge had for breakfast" (fact-scepticism).

Scandinavian realists – **Alf Ross, Karl Olivecrona** – law as psychological facts.

Theories of Law – Meaning and Definition of Law

1. Meaning of "Law"

The word "law" comes from the Teutonic word "**lag**", meaning something that is **laid down** or fixed. In general, law means a **rule of conduct** or **uniformity**. In jurisprudence, law means the **rules enforced by the State** (civil law).

2. Definitions of Law (by School)

School	Jurist	Definition
Idealistic / natural	Roman jurists; Salmond	"Law may be defined as the body of principles recognised and applied by the State in the administration of justice. " (Salmond)
Positivist / imperative	Austin	"Law is the command of the sovereign , enforced by sanction."
Positivist	Kelsen	Law is a hierarchy of norms with the Grundnorm at the top.

School	Jurist	Definition
Positivist	Hart	Law is a union of primary and secondary rules .
Historical	Savigny	Law is the expression of the common consciousness (Volkgeist) of the people.
Sociological	Roscoe Pound	Law is "a body of knowledge and experience with the aid of which a large part of social engineering is carried on".
Realist	Holmes	Law is " the prophecies of what the courts will do in fact ".
Indian	Art. 13(3)(a) of the Constitution	"Law" includes any ordinance, order, bye-law, rule, regulation, notification, custom or usage having the force of law in India.

Salmond's definition is the most accepted for exam purposes – it emphasises that law is connected with the **administration of justice** by the **courts**.

3. Salmond's Analysis

1. Law consists of rules **recognised and acted on by courts of justice**.
2. Law is the **means**, justice is the **end**.
3. **Criticism:** Salmond defines law in terms of courts, but **courts are themselves created by law**. Also, law exists before it is applied by courts.

Nature and Function of Law

1. Nature of Law

1. **Law is a rule of human conduct** – it regulates the external behaviour of people.
2. **Law is made or recognised by the State** – legislation, precedent, custom.
3. **Law is backed by sanction** – coercive force of the State.
4. **Law is general** – it applies to all persons equally.
5. **Law aims at justice** – it is a means to an end.
6. **Law is dynamic** – it changes with society.
7. **Law is both a social institution and a tool of change**.

2. Functions of Law

1. **Maintaining order and peace** – preventing crime and violence.
2. **Settling disputes** – through courts, tribunals and ADR.
3. **Protecting rights and liberties** – fundamental rights, property rights.
4. **Securing justice** – social, economic and political (Preamble).
5. **Social control** – regulating behaviour (traffic rules, taxes).
6. **Social engineering and change** – abolishing untouchability, child marriage, dowry, triple talaq.
7. **Facilitating private arrangements** – contracts, wills, companies, marriages.

8. **Protecting the weak** – labour laws, consumer laws, laws for women and children.
9. **Promoting welfare** – education, health, food security.
10. **Regulating the government** – constitutional and administrative law (rule of law).

The Purpose of Law

1. Different Views

Thinker / school	Purpose of law
Salmond	The purpose of law is justice ; "law is the means, justice is the end"
Bentham (utilitarian)	Greatest happiness of the greatest number
Kant	Securing the freedom of each person consistent with the freedom of others
Hegel	Realisation of freedom
Ihering	Protection of interests – balancing individual and social interests
Roscoe Pound	Social engineering – satisfying the maximum of wants with minimum friction
Duguit	Social solidarity
Marx	Law is an instrument of the ruling class ; it will " wither away " in a classless society
Indian Constitution	Justice, liberty, equality, fraternity, dignity – the Preamble; a welfare State (Part IV)

2. Conclusion

The purpose of law is to secure **justice, order, liberty, equality** and **welfare** in society by **balancing** individual and social interests.

The Classification of Law

1. Salmond's Classification of Law (in General)

Kind of law	Meaning	Example
Imperative law	A rule of action imposed by an authority and enforced by physical force (Austin's command)	Criminal laws
Physical or scientific law	Expressions of the uniformities of nature	Law of gravity
Natural or moral law	Principles of right and justice (law of reason, law of God)	"Do not lie"
Conventional law	Rules agreed upon by persons for their own conduct	Rules of a club, game
Customary law	Rules observed as customs	Local and tribal customs

Kind of law	Meaning	Example
Practical or technical law	Rules for achieving a practical end	Rules of grammar, architecture
International law	Rules governing relations between States	UN Charter, treaties
Civil law	The law of the State , applied by courts	The Indian legal system

2. Classification of Civil (State) Law

Basis	Kinds
Parties	Public law (State is a party – constitutional, administrative, criminal law) and Private law (between private persons – contract, property, family law)
Nature	Substantive law (rights and duties – e.g., BNS, Contract Act) and Procedural law (how rights are enforced – e.g., BNSS, CPC, BSA)
Territory	Municipal (national) law and International law
Source	Enacted law (statutes), case law (precedents), customary law , conventional law
Field	Civil law (wrongs redressed by compensation) and Criminal law (wrongs punished by the State)
Formality	Written (codified) and unwritten (customary, common law)
System	General law (applies to all) and special law (applies to a particular subject – e.g., NDPS Act), local law (applies to a particular area)
Origin of rules	Common law and equity

Easy rule: Substantive law tells **what** your rights are; procedural law tells **how** to get them.

Equity, Law and Justice

1. Meaning of Equity

Equity means **fairness**, **natural justice** or **conscience**. In English law, equity is a special body of rules developed by the **Court of Chancery** to **supplement** and **correct** the rigid **common law**.

2. Origin in England

1. The **common law courts** became **rigid**: a plaintiff could sue only if his case fitted a **writ**; the only remedy was **damages**.
2. Aggrieved persons **petitioned the King**, who referred them to the **Lord Chancellor** ("keeper of the King's conscience").
3. The **Court of Chancery** developed **equitable remedies** – **specific performance**, **injunction**, **rectification**, **rescission**, **account**; and new rights – **trusts**, **mortgages** (equity of redemption).

4. **Earl of Oxford's case (1615)** – in case of conflict between common law and equity, **equity prevails**.
5. **Judicature Acts (1873–75)** – fused the administration of common law and equity in the same courts.

3. Maxims of Equity

1. **Equity follows the law.**
2. **He who seeks equity must do equity.**
3. **He who comes into equity must come with clean hands.**
4. **Delay defeats equity** (*vigilantibus non dormientibus jura subveniunt* – the law helps the vigilant, not those who sleep on their rights).
5. **Equality is equity.**
6. **Equity looks to the intent rather than the form.**
7. **Equity regards as done that which ought to be done.**
8. **Equity acts in personam.**
9. **Where there is equal equity, the law prevails.**
10. **Equity will not suffer a wrong to be without a remedy.**

4. Equity in India

India has **no separate equity courts**, but equitable principles are found in:

1. **Specific Relief Act, 1963** – specific performance, injunctions, rectification, rescission;
2. **Indian Trusts Act, 1882;**
3. **Transfer of Property Act** – part performance (S. 53A), lis pendens (S. 52), election (S. 35), feeding the grant by estoppel (S. 43);
4. **Indian Contract Act** – quasi-contracts (Ss. 68–72), undue influence;
5. **"Justice, equity and good conscience"** – applied by Indian courts where there was **no law** (Bengal Regulation, 1781);
6. **Art. 142** of the Constitution – the Supreme Court can do **"complete justice"**.

5. Relationship between Law and Justice

1. **Justice is the end; law is the means** (Salmond).
2. Law without justice is **tyranny**; justice without law is **uncertain**.
3. **Kinds of justice**: natural justice and legal justice; distributive and corrective justice (Aristotle); social, economic and political justice (Preamble).
4. Law sometimes fails to do justice in a particular case because it is **general and rigid** – equity corrects this.

6. Law vs Equity vs Justice

Law	Equity	Justice
Rules enforced by the State	Fairness to correct the rigidity of law	The ideal or end of law
Rigid and general	Flexible , case-specific	Moral concept
Certainty	Conscience	Fairness, rightness

Theory of Sovereignty

1. Meaning

Sovereignty means **supreme power** in a State. The word comes from the Latin **superanus** ("supreme"). The sovereign is the authority whose will is **final** and **not subject to any other** within the State.

2. Characteristics of Sovereignty (Classical View)

1. **Absolute** – no legal limit;
2. **Permanent** – lasts as long as the State exists;
3. **Universal** – applies to all persons and things in the State;
4. **Inalienable** – cannot be transferred;
5. **Indivisible** – cannot be divided;
6. **Exclusive** – only one sovereign in a State.

3. Development of the Theory

Thinker	View
Jean Bodin (<i>Six Books of the Commonwealth</i> , 1576)	First systematic theory: sovereignty is "the supreme power over citizens and subjects, unrestrained by law " – but the sovereign is bound by divine and natural law
Hugo Grotius	Sovereignty is the power whose acts are not subject to the control of another ; introduced external sovereignty (independence)
Thomas Hobbes	Absolute sovereign created by the social contract
John Locke	Sovereignty belongs to the people ; government is a trust
Rousseau	Popular sovereignty – the general will of the people
Bentham and Austin	Legal sovereignty – the determinate superior who receives habitual obedience

4. Austin's Theory of Sovereignty

Austin: "If a **determinate human superior**, **not in a habit of obedience** to a like superior, receives **habitual obedience** from the **bulk** of a given society, that determinate superior is **sovereign** in that society, and the society (including the superior) is a society political and independent."

Features:

1. The sovereign is a **determinate** person or body;
2. It receives **habitual obedience** from the **bulk** of society;
3. It is **not habitually obedient** to anyone else;
4. Its power is **unlimited** and **indivisible**;
5. Law is its **command**.

Criticism:

1. **Sir Henry Maine – Maharaja Ranjit Singh** of Punjab was an absolute ruler, yet he **never made laws**; he enforced the **customs** of the people. So sovereigns are limited by custom.
2. In **democracies**, sovereignty lies with the **people**, not a determinate person.
3. In **federal** States (India, USA), power is **divided** between the Centre and the States; the **Constitution** is supreme.
4. **International law** limits sovereignty – States accept treaties, the UN Charter and human rights obligations.
5. **Pluralists** (Laski, MacIver) – power is shared by many associations (churches, unions); "It would be of lasting benefit to political science if the whole concept of sovereignty were surrendered" (**Laski**).
6. **Judicial review** limits legislative power.

5. Kinds of Sovereignty

1. **Legal sovereignty** – the authority that makes law (e.g., the **UK Parliament**).
2. **Political sovereignty** – the **people / electorate** who ultimately control the legal sovereign (**Dicey**).
3. **De jure sovereignty** – sovereignty by law.
4. **De facto sovereignty** – actual **power**, even if not lawful (e.g., a government that takes power by a coup).
5. **Popular sovereignty** – sovereignty of the **people** (Rousseau).
6. **Internal sovereignty** – supremacy within the State.
7. **External sovereignty** – independence from other States.

6. Sovereignty in India

1. **Preamble**: "We, the **people of India**... do hereby adopt, enact and give to ourselves this Constitution" – **popular sovereignty**.
2. India is a "**Sovereign** Socialist Secular Democratic Republic".
3. **Constitutional supremacy** – no organ (Parliament, executive or judiciary) is absolutely sovereign; all are bound by the **Constitution**.
4. **Parliament's amending power** is limited by the **basic structure** (*Kesavananda Bharati*, 1973; *Minerva Mills*, 1980).
5. **Federalism** – division of powers between the Union and States (*S.R. Bommai*, 1994: federalism is a basic feature).

6. Judicial review – Arts. 13, 32, 226.

Latest example: In *In re Article 370 (2023)*, the Supreme Court held that **Jammu and Kashmir** did **not retain any element of sovereignty** after joining India; the Constitution of India is the supreme document for all States.

7. Sovereignty in the Modern World

- **Globalisation** – WTO rules, climate treaties and human rights treaties limit State sovereignty.
- **Digital sovereignty** – States assert control over **data** (e.g., data localisation, the **DPDP Act, 2023**) and over **global tech platforms**.
- **Responsibility to Protect (R2P)** – sovereignty is seen as **responsibility**, not just power.

Quick Revision – Jurists, Comparisons and Latest Cases

Jurists at a Glance

Jurist	School / idea	Key words to remember
Bentham	Analytical; utilitarian	Greatest happiness; codification; "nonsense upon stilts"
Austin	Analytical	Law = command of sovereign + sanction ; "father of English jurisprudence"
Hart	Analytical (modern)	Primary and secondary rules ; rule of recognition ; open texture
Kelsen	Pure theory	Grundnorm ; hierarchy of norms
Dworkin	Rights thesis	Rules + principles ; Hercules judge
Savigny	Historical	Volksgeist ; opposed codification; possession = corpus + animus domini
Henry Maine	Historical	Status to contract ; legal fictions, equity, legislation
Aquinas	Natural law	Eternal, natural, divine, human law; unjust law is no law
Hobbes / Locke / Rousseau	Social contract	Absolute sovereign / limited government / general will
Fuller	Natural law (modern)	Inner morality of law – 8 principles
Finnis	Natural law (modern)	7 basic goods
Ihering	Sociological	Law as a means to a social end ; interests ; lever
Ehrlich	Sociological	Living law
Duguit	Sociological	Social solidarity
Roscoe Pound	Sociological	Social engineering ; individual, public and social interests; jural postulates
Holmes	Realist	"Life of law is experience"; prophecies of courts
Salmond	Analytical	Law = principles applied by the State in the administration of justice ; elements of a right; possession
Hohfeld	Analytical	8 jural relations – right, privilege, power, immunity
Rawls	Justice	Veil of ignorance ; difference principle
Amartya Sen	Justice	Niti and nyaya ; capabilities

Important Comparisons at a Glance

Topic	Contrast
General vs particular jurisprudence	Common to all systems vs one system
Legal vs historical sources	Authoritative vs persuasive
Supreme vs subordinate legislation	Sovereign authority vs delegated authority
Ratio decidendi vs obiter dicta	Binding reason vs remarks by the way
Original vs declaratory precedent	Creates new law vs applies existing law
Authoritative vs persuasive precedent	Must be followed vs may be followed
Custom vs prescription	Rule for a community vs right of an individual
Natural vs legal person	Human being vs entity with conferred personality
Corporation aggregate vs sole	Many members at once vs one office-holder at a time
Right in rem vs in personam	Against the world vs against a determinate person
Intention vs motive	What vs why
Ownership vs possession	De jure vs de facto
Corpus vs animus	Physical control vs intention
Civil vs criminal justice	Enforcing rights vs punishing wrongs
Deterrent vs reformatory theory	Warn society vs cure the offender

Latest Cases and Developments at a Glance

Year	Case / Event	Jurisprudential point
2025	Uttarakhand UCC in force	Codification; custom replaced (except STs)
2025	Labour Codes in force (21 Nov)	Consolidating legislation
2025	Madras HC – crypto as property	New forms of property
2024	<i>Property Owners Association v State of Maharashtra</i>	Private property and Art. 39(b); overruling
2024	<i>Kolkata Municipal Corporation v Bimal Kumar Shah</i>	Seven sub-rights under Art. 300A
2024	<i>Sita Soren v UOI</i>	Overruling <i>P.V. Narasimha Rao</i> ; purposive interpretation
2024	<i>In re Demolition of Structures</i>	Due process; protection of possession
2024	<i>Sukanya Shantha v UOI</i>	Reformatory theory; dignity of prisoners

Previous Year Questions and Answers

How to Write Answers in the Exam

- **Part A (4 marks):** definition by **two jurists** → meaning in simple words → **two or three features** → **one example** or case.
- **Part B (10 marks):** introduction → **definitions** (three or four jurists) → explanation / theories (in a table if possible) → **criticism** → **Indian position** with cases → **latest example** → conclusion.
- **Jurisprudence answers score high when they quote jurists accurately** – memorise the key definitions in the tables.
- **Problems** (occasionally asked on possession, persons, motive and liability): use **FILAC** – Facts, Issue, Law (theory + case), Application, Conclusion.

Short Answer Questions (4 Marks)

1. Definition of Jurisprudence

From the Latin *juris* (law) and *prudentia* (knowledge). **Austin**: "the philosophy of positive law"; **Salmond**: "the science of the first principles of the civil law"; **Holland**: "the formal science of positive law"; **Julius Stone**: "the lawyer's extraversion". It studies the **basic concepts** and **nature** of law.

2. Volksgeist

Savigny's idea that law is the expression of the "**spirit of the people**". Law grows from customs and beliefs, like **language**, and is not made arbitrarily by the legislator. Savigny therefore **opposed** hasty **codification**. Criticism: the volksgeist is vague, and law often **leads** social change.

3. From Status to Contract

Henry Maine (*Ancient Law*, 1861): "The movement of the progressive societies has hitherto been a movement **from status to contract**." In ancient societies, rights depended on birth and family position; in modern societies, on **free agreement**. Today, welfare laws (labour, consumer, rent) show a partial return to **status**.

4. Grundnorm

Kelsen's basic norm – the **presupposed** ultimate norm from which all other norms of a legal system derive their **validity** (hierarchy: court order → statute → Constitution → Grundnorm). It changes with a successful revolution (*State v Dosso*, 1958; rejected in *Asma Jilani*, 1972).

5. Hart's Concept of Law

Law is a **union of primary rules** (duty-imposing) and **secondary rules** – rules of **recognition**, **change** and **adjudication**. Hart rejected Austin's "gunman" model and stressed the **internal aspect** of rules and the **minimum content of natural law**.

6. Natural Law

A **higher law** based on **reason, nature or God**, which is universal and unchangeable; positive law must conform to it (Aristotle, Cicero, **Aquinas**, Grotius, Locke). It revived after the Second World War through **human rights**. India: *Maneka Gandhi*, *Kesavananda*, *Puttaswamy* (life and liberty are inalienable).

7. Social Engineering

Roscoe Pound's theory that law is a tool for **balancing** competing **interests** – individual, public and social – to satisfy the **maximum** of wants with the **minimum** of friction. Examples in India: **PIL**, *Vishaka*, land reforms, environmental jurisprudence.

8. Living Law

Eugen Ehrlich: "The centre of gravity of legal development lies not in legislation, nor in juristic science, nor in judicial decision, but in **society itself**." The real law is the law that actually governs people's lives (customs, practices), not only the law in books.

9. Ancient Indian Jurisprudence – Dharma

Dharma (from *dhr* – to sustain) included law, duty and morality. Sources: **Shruti**, **Smriti**, **Sadachara**, **Atmatashti**. The **king was bound by dharma** (Rajadharma); **danda** (punishment) protected the people; Manu listed **18 titles of law**; Kautilya ranked royal edicts above custom and dharma.

10. Equity

Fairness and **conscience** developed by the English **Court of Chancery** to correct the rigidity of common law – remedies such as specific performance, injunction and trusts. **Maxims**: he who seeks equity must do equity; delay defeats equity; equity follows the law. In India: the Specific Relief Act, the Trusts Act, Art. 142.

11. Austin's Theory of Sovereignty

A **determinate human superior, not in habitual obedience** to any like superior, receiving **habitual obedience** from the **bulk** of society, is sovereign; sovereignty is **unlimited** and **indivisible**. Criticism: **Maine** (Ranjit Singh), democracies, **federal** constitutions, international law, pluralists (Laski).

12. Legal and Historical Sources of Law

Legal sources are **authoritative** (binding) – legislation, precedent, custom, agreement. **Historical sources** are **unauthoritative** but have **influenced** law – Roman law, jurists' writings, foreign decisions. (Salmond.)

13. Subordinate Legislation

Legislation by an authority **other than the sovereign**, under **delegated** power, **controlled** by the supreme legislature. Kinds (Salmond): **colonial**, **executive**, **judicial**, **municipal** and **autonomous**. Controlled by **Parliament** (laying, committees) and **courts** (*ultra vires*).

14. Mischief Rule

From *Heydon's Case (1584)* – four questions: the law before the Act, the **mischief**, the **remedy**, and the reason for it; the court interprets to **suppress the mischief and advance the remedy** (*Smith v Hughes*, 1960; *Bengal Immunity*, 1955).

15. Golden Rule

The **literal** meaning is followed **unless** it leads to **absurdity** or inconsistency, in which case the words are modified to avoid it (*Grey v Pearson*, 1857; *Adler v George*, 1964 – "in the vicinity of" read to include "in").

16. Ratio Decidendi

The **principle of law** on which a decision is **based** – the **binding** part of a precedent. Tests: **Wambaugh's reversal test** and **Goodhart's material facts test**. Distinguished from **obiter dicta** (remarks by the way, only persuasive).

17. Stare Decisis

"Stand by what has been decided" – courts follow principles laid down in earlier decisions, especially of **higher courts**, for **certainty** and **consistency**. In India: **Art. 141** – Supreme Court law binds all courts; the Supreme Court may depart from its own decisions (*Bengal Immunity*, 1955).

18. Per Incuriam

A decision given in **ignorance** or forgetfulness of a **binding statute** or **binding precedent** is **per incuriam** and **not binding** (*A.R. Antulay v R.S. Nayak*, 1988).

19. Prospective Overruling

A doctrine under which an overruling decision applies only to **future** cases, so that **past** transactions based on the old law are **not disturbed**. First applied in India in *I.C. Golak Nath v State of Punjab* (1967).

20. Requisites of a Valid Custom

Antiquity, continuity, peaceable enjoyment, certainty, reasonableness, conformity with statute, not opposed to public policy, obligatory force and consistency. A local custom must be **strictly proved** (*Ujagar Singh v Mst. Jeo*, 1959). S. 3(a) HMA defines custom.

21. Custom and Prescription

Custom is a **general rule** of conduct of a **community**; **prescription** is a **right** acquired by an **individual** through **long use** for a **statutory period** (e.g., easement after **20 years** – S. 15 Easements Act; adverse possession after **12 years**).

22. Codification

The systematic **collection and enactment** of law into a **code** (Bentham coined the term). **Advantages**: certainty, accessibility, uniformity, reform. **Disadvantages**: rigidity, gaps, interpretation problems. Examples: **IPC (1860), Hindu Code (1955–56), BNS (2023), Labour Codes, Uttarakhand UCC (2024)**.

23. Legal Personality

A **person** is any being **capable of rights and duties** (Salmond). **Natural persons** are human beings; **legal persons** are entities given personality by law – companies, the State, idols, universities. *Salomon v Salomon* (1897) – separate corporate personality.

24. Fiction Theory of Corporate Personality

Savigny and Salmond: a corporation is a **fictitious** person; only human beings are real persons; the law **pretends** that a corporation is a person for convenience. Criticism: it cannot explain how a fiction can act, own property and commit crimes.

25. Realist Theory of Corporate Personality

Gierke and Maitland: a corporation is a **real** person with a **group will**, like a living organism; the State only **recognises**, not creates, it. Criticism: groups do not literally have a mind.

26. Corporation Sole

A **series of successive persons** holding an **office**, incorporated as **one**, so that the office continues irrespective of the holder (e.g., the **Crown** in the UK; the **Postmaster General**; a **bishop**). Distinguished from a **corporation aggregate** (many members at once – a company).

27. Legal Status of Unborn Persons

A child in the womb is not yet a full person, but the law protects it if it is **born alive**: **S. 13 TPA** (transfer for an unborn person); **S. 20 HSA** (child in the womb inherits); **BNS Ss. 88–92** (miscarriage); the **MTP Act** and **PCPNDT Act**. *X v UOI (2023)* balanced the unborn child's rights with the woman's autonomy.

28. Legal Status of Dead Persons

Death ends personality, but the law protects the dead person's **body** (dignity, decent burial – *Parmanand Katara, 1995*; *Ashray Adhikar Abhiyan, 2002*), **reputation** (Explanation 1 to S. 356 BNS) and **wishes** regarding property (wills).

29. Idol as a Juristic Person

A Hindu **idol (deity)** is a **juristic person** that can own property and sue through a **shebait** (*Pramatha Nath Mullick, 1925*). In the **Ayodhya case (2019)**, **Ram Lalla Virajman** was held a juristic person, but the **land** was not. The **Guru Granth Sahib** is a juristic person (*SGPC v Som Nath Dass, 2000*).

30. Elements of a Legal Right (Salmond)

1. **holder** (subject);
2. **person of incidence** (bound by the duty);
3. **content** (act or forbearance);
4. **object** (thing);
5. **title** (facts by which the right is acquired).

31. Right in Rem and Right in Personam

A **right in rem** is available against the **whole world** (ownership, reputation); a **right in personam** is available against a **determinate person** (rights under a contract). Correspondingly, duties are owed by all persons or by a specific person.

32. Perfect and Imperfect Rights

Perfect rights are recognised **and enforceable** by law; **imperfect** rights are recognised but **not enforceable** – e.g., a **time-barred debt** (cannot be sued upon, but can be paid and retained, and can support a fresh promise under S. 25(3) Contract Act).

33. Hohfeld's Jural Correlatives

Right – duty; privilege – no-right; power – liability; immunity – disability. (Jural opposites: right – no-right; privilege – duty; power – disability; immunity – liability.)

34. Absolute Duties (Austin)

Duties **without correlative rights**:

1. **self-regarding** duties;
2. duties towards **indeterminate persons** or the public;
3. duties towards the **sovereign**;
4. duties towards **animals** or **God**.

Salmond argued that all duties have correlative rights.

35. Obligation

A **vinculum juris** – a **legal bond** by which one **determinate** person is bound to another to do or give something, having **money value**. Sources (Salmond): **contract, delict (tort), quasi-contract** and **innominate** (trust, judgment debts).

36. Quasi-Contract

An obligation **imposed by law** to prevent **unjust enrichment** where there is no contract – **Ss. 68–72 Indian Contract Act** (necessaries, payment by an interested person, non-gratuitous acts, finder of goods, mistake or coercion). *State of W.B. v B.K. Mondal* (1962).

37. Mens Rea

The **guilty mind** – intention, knowledge, recklessness or (sometimes) negligence. *Actus non facit reum nisi mens sit rea*. **Exceptions**: strict liability offences (*State of Maharashtra v M.H. George*, 1965).

38. Intention and Motive

Intention is the **immediate** purpose ("what"); **motive** is the **ulterior** purpose ("why"). Motive is generally **irrelevant** to liability (*Bradford Corporation v Pickles*, 1895) but relevant to **proof, sentencing**, and torts such as **malicious prosecution** and defamation.

39. Theories of Negligence

Subjective (Salmond) – negligence is a **state of mind** of **carelessness** or **indifference**. **Objective** (Pollock) – negligence is **conduct** falling below the standard of a **reasonable person** (*Blyth v Birmingham Waterworks*, 1856). Modern law follows the **objective** theory.

40. Strict and Absolute Liability

Strict liability – *Rylands v Fletcher* (1868): liability for the **escape** of a **dangerous** thing from **non-natural** use of land, subject to exceptions. **Absolute liability** – *M.C. Mehta v UOI* (1987): hazardous enterprises are liable **without any exception**; compensation proportionate to the enterprise's **capacity** (applied in the **LG Polymers** gas leak, 2020).

41. Vicarious Liability

Liability for the **wrongs of another** because of a **relationship** – master and servant, principal and agent, partners, State and its servants. Based on *qui facit per alium facit per se* and *respondeat superior*. The wrong must be **in the course of employment** (*Lloyd v Grace, Smith & Co.*, 1912).

42. Austin's Definition of Ownership

"A right **indefinite in point of user**, **unrestricted in point of disposition**, and **unlimited in point of duration** over a determinate thing." Criticism: user, disposition and duration are all **limited** by law (zoning, land ceilings, limited terms of IP).

43. Corpus and Animus in Possession

Corpus possessionis – physical **control** of the thing with power to exclude others. **Animus possidendi** – **intention** to exercise that control and appropriate its benefits (Salmond). **Savigny** required **animus domini** (intention to hold as owner); **Ihering** treated possession as the **outward exercise** of ownership.

44. Possessory Remedies

Remedies protecting **possession** without deciding title:

1. **S. 6, Specific Relief Act** – suit within **6 months** of dispossession, not against the Government; no appeal;
2. **S. 164 BNSS** (old S. 145 CrPC) – the Magistrate maintains **actual possession** when there is a likely breach of peace;
3. **injunctions**;
4. **trespass actions**.

45. Adverse Possession

Open, continuous, hostile and exclusive possession **as of right** for **12 years** (private land) or **30 years** (government land) extinguishes the owner's title (**S. 27 Limitation Act**). *Ravinder Kaur Grewal* (2019) – it can be used as a **sword**. The **State** cannot claim adverse possession against its citizens (*Vidya Devi*, 2020).

46. Kinds of Property

- **Corporeal** (tangible – movable and immovable) and **incorporeal** (rights – patents, copyright, easements, shares);
- **real** and **personal**;
- **public** and **private**;
- **intellectual** property.

New forms include **virtual digital assets**, **carbon credits** and **data**.

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